

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/07/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008727

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M.GIL

PLAINTIFF: SHERRI ANDREA
ANDERSON

vs.

DEFENDANT: TIBERIOUS WALLACE

NATURE OF PROCEEDINGS: MOTION - RECONSIDERATION

RULING

A motion for reconsideration may be brought by a party or the court on its own motion to revisit an interim or final order prior to the entry of final judgment. Such a motion must be based on new or different facts, circumstances, or a change in law and must be filed within ten days after service of written notice of entry of the order. The court retains inherent constitutional power to reconsider erroneous interim orders at any time before final judgment is entered, regardless of the specific provisions of CCP § 1008.

However, once a final judgment is entered, the court loses jurisdiction to grant a motion for reconsideration of an order that has been subsumed in that judgment. Entry of judgment divests the court of jurisdiction to rule on a motion for reconsideration. (*Ramon v. Aerospace Corp.* (1998) 50 Cal.App.4th 1233, 1237-1238.) After judgment, a trial court cannot correct judicial error, except in accordance with statutory proceedings; e.g., motion for new trial (Code Civ. Proc. § 656, et seq.); or a motion to vacate judgment. (Code Civ. Proc. § 663.) (*Id.* at p. 1238.)

Here, a Civil Harassment Restraining Order was issued after a full and fair hearing on May 7, 2026. During the hearing the court took testimony from the Protected Person, Ms. Anderson, and the Restrained Person, Mr. Wallace. Percipient Witness James Folan was also called by the Plaintiff. This is a dispute regarding a Homeowners Association board member (Anderson) and a resident of the complex (Wallace).

Cal. Code of Civil Procedure § 1008 is the exclusive means for modifying, amending or revoking an order. It is expressly jurisdictional. (*Morite of California v. Superior Court* (1993) 19 Cal.App.4th 485, 490.) Section 1008 requires that the motion for reconsideration of an order must be “based upon new or different facts, circumstances, or law,” and supported by an affidavit stating, “what application was made before, when and to what judgment, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc. § 1008(a).) To merit reconsideration, the party must give a satisfactory reason why it was unable to present its new evidence at the original hearing.

(*McPherson v. City of Manhattan Beach* (2000) 78 Cal.App.4th 1252, 1265; *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499.)

Here, the Restrained Party argues that the court did not review a proffered video that purported to show a lack of a confrontation between the parties as the Protected Party and building contractor attempted to exit a garage elevator. It is disingenuous for the Restrained Party to state that the court did not view a video regarding the altercation at the elevator. During the hearing, the court viewed a video clip(s) (possibly more than one) which showed the Respondent standing in the way of the Protected Person and Mr. Folan, as the attempted to exit the elevator. Any other video of the scene would have shown the same thing, possibly from a different angle with both apparently recording the conflict on their cellphones.

In addition to the video of the elevator scene, there were many other factors presented in court to justify the issuance of the restraining order.

During the hearing, the Protected Party easily met her burden of Clear and Convincing Evidence. (Code of Civil Procedure §527.6(i), and conduct that is likely to continue unless a restraining order is issued. *Russell v Douvan* (2003) 112 Cal.App.4th 399.)

In the motion for reconsideration and supporting memorandum of points and authorities, the Restrained Party does not provide the court with any new the law that is are dispositive to support the request. He misstates factual allegations because the court did review of video of the elevator incident. The Restrained Party provides no new facts for the court to reconsider. There are no new circumstances, nor is there new law that would support his request.

The request for reconsideration is DENIED.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/07/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0010548

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M.GIL

PLAINTIFF: JOSEPH MUELLER

vs.

DEFENDANT: MARIN COMMUNITY
COLLEGE DISTRICT

NATURE OF PROCEEDINGS: ORDER - SHOW CAUSE - PRELIMINARY INUNCTION

RULING

The court entered order on July 13, 2026, on Petitioner Joseph Mueller request for a Temporary Restraining Order prohibiting the distribution of personnel records held by the Respondent, Marin Community College District.

The matter was set for hearing on August 7, 2026.

No additional papers were filed by either party.

Appearances are required.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

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